

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

TRACEY CLARKE BILTER,

Petitioner

VS.

SCOTT DOUGLAS BILTER,

Respondent

) Case Number: FDI-24-800718

) Hearing Date: June 16, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: ATTORNEY FEES AND COSTS, AND TRIAL CONTINUANCE
BASED ON LOSS OF COUNSEL DUE TO NONPAYMENT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Tracey Clarke Bilter and Scott Douglas Bilter.
- 2) On 4/27/26, Petitioner filed a Request for Order seeking \$37,959 in Family Code section 2030 attorney's fees and costs and a continuance of trial due to loss of legal representation. Petitioner's position is that Respondent is required to pay 60% of per legal fees per the terms of the Stipulation and Order filed 1/14/25. Petitioner asserts that due to Respondent's failure to pay, she can no longer afford legal representation. Petitioner states that the case is not ready for trial because the parties are not of equal footing to proceed.
- 3) On 4/27/26, Petitioner filed an Income and Expense Declaration.
- 4) On 6/1/26, the parties attended a Status Conference, and the Court set a Mandatory Settlement Conference on 10/9/26.

1 5) On 6/3/26, Respondent filed a Responsive Declaration in opposition to Petitioner's Request for
2 Order. Respondent requests the Court deny Petitioner's request for \$37,959 in attorney's fees and
3 costs and instead order a \$10,000 advancement of funds that is subject to reallocation.

4 6) On 6/3/26, Respondent filed an Income and Expense Declaration.

5 7) On 6/3/26, Respondent additional financial documents.

6 8) On 6/5/26, Petitioner filed a Reply Declaration reiterating her requests

7 **B. Findings and Order**

8 1) The Court confirms that the case is set for Mandatory Settlement Conference on 10/9/26.

9 2) Petitioner's request for Family Code section 2030 attorney's fees is GRANTED, albeit in the
10 amount of 15,000 subject to reallocation.

11 3) The Court finds an award of attorney's fees and costs is appropriate here because there is a
12 demonstrated disparity between the parties in access to funds to retain or maintain counsel and in
13 the ability to pay for legal representation.

14 4) The Court further finds Respondent has or is reasonably likely to have the ability to pay for legal
15 representation for both parties.

16 5) Finally, \$15,000 in attorney's fees and costs are reasonable and necessary.

17 6) Respondent shall pay this balance in full by 6/30/26.

18 7) The Court will prepare the Findings and Order After Hearing.
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